

25STCV02788 25STCV02788

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-15

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Case Number: 25STCV02788 Hearing Date: September 15, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

15, 2026 TRIAL

DATE: May 1, 2028

CASE: Mary Becerra, et al. v. General Motors, LLC

CASE NO.: 25STCV02788

DEFENDANT

GENERAL MOTORS LLC'S MOTION TO DISMISS FOR DISCOVERY VIOLATIONS; REQUEST FOR
AWARD OF COSTS (C.C.P. 871.26, SUBD. (J)(3))

MOVING PARTY: Defendant

General Motors, LLC

RESPONDING PARTY: Plaintiffs Mary

Becerra and Antonio Escobedo

I. INTRODUCTION

This is a

Song-Beverly action. On December 24,

2025, defendant General Motors, LLC ("GM") filed a motion to compel Plaintiffs,

Mary Becerra and Antonio Escobedo, to appear and comply with the initial

deposition of Plaintiffs as required under Code of Civil Procedure (CCP) § 871.26(c)(1).

On January 28, 2026, the court granted the motion and ordered Plaintiffs Mary to comply with the initial deposition requirements under CCP section 871.26 within 20 days of the order.

On March 11, 2026, GM filed another motion to compel Plaintiffs to provide the complete production of documents and written disclosure of information as required under Code of Civil Procedure (CCP) sections 871.26, subdivisions (b) and (f).

On May 27, 2026, the court granted the motion and ordered Plaintiffs to comply with the initial disclosure requirements under CCP section 871.26 within 15 days of the order.

On June 24, 2026, GM filed this motion to dismiss Plaintiffs' action without prejudice pursuant to CCP section 871.26, subdivision (j)(3) for failure to comply with Section 871.26's mandatory requirements and this court's orders issued on January 28, 2026 and May 27, 2026.

On September 1, 2026, Plaintiffs filed an opposition.

On September 9, 2026, Defendant filed a reply.

II. DISCUSSION

The motion is meritorious. Where a party fails to comply with the mandates of section 871.26, subdivision (j)(3) states, "[f]or a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer." No California Court of Appeal has opined on what constitutes "repeated noncompliance" to warrant dismissal of Section 871.26.

Here, GM moves for dismissal for Plaintiffs' noncompliance with

subdivisions (b) and (c), and the court's January 28, 2026 and May 27, 2026 orders. To date, Plaintiffs have not complied with either court order. Indeed, GM confirms that Plaintiffs cancelled a deposition scheduled for September 9, 2026. Plaintiffs do not address at all their failure to comply with the court's May 27, 2026 order. Under Section 871.26, Plaintiffs' repeated noncompliance warrants dismissal of their claims.

III. CONCLUSION

The motion is GRANTED. The First Amended Complaint is DISMISSED WITHOUT PREJUDICE. Pursuant to CCP section 871.26, subdivision (j)(3), GM is entitled to an award of costs to be determined by the filing of a memorandum of costs.

Moving Party to give notice, unless waived.

Dated: September 15,
2026

Brock T. Hammond

Judge of the Superior Court